

Disposition

This is the second time Plaintiff has failed to properly serve Defendant.

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L25-03863
CASE NAME: WELLS FARGO BANK, NA VS. NICHOLAS TORRE
MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLTF'S REQ FOR
ADMISSIONS AS ADMITTED FILED BY PLTF. ON 04/14/2026
FILED BY: WELLS FARGO BANK, NA
***TENTATIVE RULING**

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/14/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of the Motion and Declaration, indicating mail service to Defendant at a Walnut Creek address.

Plaintiff then filed an Amended Notice of the Motion on 5/4/26, and also filed a proof of service indicated that this Amended Notice was served by mail at an Orinda address, the same Orinda address that Defendant listed on his Answer. The Amended Notice, however, did not contain any points and authorities, and did not contain the discovery requests at issue.

No response has been filed by the Defendant.

This court finds that there is no service of the Motion on Defendant, since the address used for notice of the Motion is a Walnut Creek address, and there is no evidence to suggest that Defendant resides at that address.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to provide notice of Motion and new hearing date to Defendant.

Court to file Order.

6. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
AND NTC OF MTC FURTHER RESPONSES
FILED BY: SCHINDLER, JULIE A M

TENTATIVE RULING:

Plaintiff Schindler filed, on 4/9/26, a Motion to Compel Further Responses (“Motion,” or “MTC”).

The Defense filed a timely Response (“Response”), along with a Declaration (“Defendant’s Declaration,” or “Defendant’s Dec.”) and a Separate Statement, on 6/23/26.

Plaintiff filed a Reply and a declaration.

All moving papers appear to have been properly noticed and served.

Background

Facts

The causes of action stem from the treatment of Plaintiff’s cat, Chloe, by the Defendant, a veterinarian, at an office that provided veterinary medical treatment. Plaintiff brought her cat, Chloe, to the VCA offices for treatment, upon the recommendation of Chloe’s primary, or referring, veterinarian. Defendant Atwater, a veterinarian employed by VCA, attended to Chloe and, after some testing, offered a diagnosis of Small Cell Lymphoma, a more treatable form of cancer, to Plaintiff. Defendant Atwater also recommended a course of treatment designed for this type of cancer.

Several weeks later, Chloe died. The autopsy concluded that kidney failure, due to Large Cell Lymphoma as well as an enlarged kidney, was the cause of death.

After this revelation, Plaintiff requested medical records from VCA and learned that testing results indicated that Chloe had two forms of cancer, Large Cell Lymphoma in addition to Small Cell Lymphoma. The former is more aggressive. Both of these diagnoses were apparent to Defendant Atwater in the testing results prior to his communications with Plaintiff, yet Defendant Atwater never disclosed the Large Cell Lymphoma to Plaintiff.

In addition, although Defendant Atwater verbally provided a diagnosis of only Small Cell Lymphoma to Plaintiff, this diagnosis was absent in the records from VCA. This apparently conflicted with the records from the referring veterinarian, which reflected communications with Defendant Atwater in which he diagnosed Chloe with Small Cell

Lymphoma.

Defendant Atwater later sent to Plaintiff a condolence card in which he wrote that Chloe could have benefitted from more aggressive treatment, but that he understood Plaintiff's decision, which apparently suggested that Plaintiff had chosen to only treat Chloe for Small Cell Lymphoma.

Plaintiff also alleges that, after surgery for Small Cell Lymphoma, Chloe "was prescribed" the incorrect dosage of a pain medication. When Plaintiff raised concerns about the dosage, an employee of VCA, Ms. Shuttlesworth, who acted in the capacity of Doctor's Assistant Lead, assured her that the indicated dosage was fine, and there was no risk from a higher dosage. The dosage, which was apparently much higher than normal, contributed to Chloe's kidney failure and, ultimately, her death.

Plaintiff seeks economic damages for Chloe.^[1]

Procedural History

Plaintiff made the discovery requests at issue in this MTC before the court addressed the Defendant's demurrer, on 2/3/26, to the First Amended Complaint ("FAC"). On that date, this court sustained the demurrer in part, and allowed the Plaintiff leave to amend the FAC to some degree. Plaintiff then filed a Second Amended Complaint ("SAC") on 2/13/26, to which Defendant again demurred and which, again, the court sustained, with leave to amend (See footnote referenced earlier in this Ruling).

The cause of action of Professional Malpractice has withstood all challenges to the original complaint and its progeny.

Discovery Requests

Plaintiff's Motion reflects that she had originally requested discovery from the Defendant in the following manner: 11 Requests for Admission; 47 Special Interrogatories (there were 22 Special Interrogatories, but 9 of which contained multiple subparts); and two sets of document production requests for a total of 60 discovery requests. Plaintiff provided the date of 11/25/25, on all these requests. (See Exhibit C, MTC.)

Plaintiff acknowledged, in an email from 1/29/26, that the number of her requests exceeded the legal limit. (See p. 4, Exhibit E, Defendant's Declaration.)

After an agreement to extend the deadline, Defendant served his initial set of verified responses on 1/14/26, the date of this deadline, by email and mail. (See Exhibits A through D of Defendant's Declaration.)

After a conference on 2/5/26, the parties again agreed to a deadline of 2/26/26, for Defendant to augment particular responses, namely, Request for Admission #7 (“RFA7”), Special Interrogatory #1 (“SI1”) SI1 and Special Interrogatory #10 (“SI10”) (hereinafter, “Timely Requests.” Note, the particular number references of the requests are consistent with the original numbering of the requests by the Plaintiff; thus, Defendant’s further response to SI2 is in fact a response to SI10 in Plaintiff’s original set of requests). (See Exhibit E of Defendant’s Declaration; also, the balance of discovery requests will, hereinafter, be referred to as, “Balance of Requests.”) Defendant properly met this deadline with a further set of verified responses. (See Declarations F and G of Defendant’s Declaration.)

At this same conference, the parties also apparently agreed that the deadline for any motion to compel would be 3/12/26. There is an email from Defendant’s attorney that appears to memorialize a phone conversation between the parties. (See Exhibit E of Defendant’s Declaration, as well as Exhibit H, in which Plaintiff acknowledges the agreement.) Plaintiff apparently rescinds this agreement in an email from 3/2/26 (See Exhibit H of Defendant’s Declaration.)

Also, between 1/29/26 and 2/2/26, Plaintiff requested that the parties agree to increase the number of discovery requests that she could propound. (Defendant’s Declaration, Ex. E.) There was no evidence of a response to this particular request, but the parties did meet on 2/5/26, and agreed to the 2/26/26, deadline, and Defendant did provide his further responses to RFA7, SI1 and SI10. Defendant, in his further responses to RFA7, and SI1 and SI10, maintained his objections to the number of Plaintiff’s requests.

Plaintiff informed Defendant, on 3/1/26, that she would not meet and confer while her appeal to disqualify this court was pending. Defendant responded that no authority supported a suspension of discovery deadlines during an appeal. Defendant expressed an openness to a further meeting and conference. (Defendant’s Dec. Ex. I.)

On 3/26/26, Defendant, in an attachment to an email, provided a log purportedly of communications between Dr. Atwater and other clinic personnel concerning Chloe. This response was not verified. (See Exhibit J, Defense’s Declaration.)

On 4/9/26, Plaintiff filed this Motion.

There is no evidence that any meeting and conference occurred between Defendant’s further discovery responses, on 2/26/26, and the filing of this Motion.

Discovery Requests and Responses

The discovery requests and responses at issue for this Motion - RFA7, SI7 and SI10, the

Timely Requests - are below, and, except for the acronyms, are taken directly from the pleadings.

RFA7:

Admit that YOU were grossly negligent when YOU violated CIVIL CODE § 3340 by neglecting to notice CHLOE's histopathology report included information indicating CHLOE had large cell lymphoma.

RESPONSE TO RFA7:

Responding Party objects on the ground that this request is vague and ambiguous. Responding Party objects that this request calls for a legal conclusion. Responding Party objects that this request calls for expert opinion. Responding Party objects that the number of requests, together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a).

FURTHER RESPONSE TO RFA7:

Responding Party objects on the ground that this request is vague and ambiguous. Responding Party objects that this request calls for a legal conclusion. Responding Party objects that this request calls for expert opinion. Responding Party objects that the number of requests, together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a).

Subject to and without waiving the foregoing objections, Responding Party responds as follows: Responding Party admits that he at first did not see "large cell lymphoma" on the histopathology report. Express as expressly admitted, Responding Party denies this request.

A. SI1:

If YOU contend that YOU read the "MICROSCOPIC FINDINGS" section of the HR on or about June 25, 2024, state ALL FACTS supporting YOUR contention. including:

- (a) The date and time YOU read it;
- (b) Where YOU were when YOU read it:
- (c) What actions YOU took after reading it:
- (d) Why YOU did not prescribe treatment for large cell lymphoma after

reading it.

RESPONSE TO SI1:

Responding Party objects to this request on the ground that it includes impermissible subparts. Responding Party also objects that the number of interrogatories, with the impermissible subparts and together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a). Responding Party further objects to the extent the request seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence.

Subject to and without waiving the foregoing objections, Responding Party responds as follows:

(a) June 25, 2024 at 12:35 p.m.;

(b) At Responding Party's residence, as he was not scheduled to work on July 25, 2024;

(c) Responding Party called Propounding Party to inform Propounding Party of the histology report results. Responding Party advised starting treatment with prednisolone or dexamethasone, B-12, and chlorambucil in one week after Chloe healed completely from surgery. Responding Party advised a recheck in two months after starting chlorambucil;

(d) Responding Party focused on the small cell lymphoma diagnosis, which was indicated with the intestinal mass and node on the histology report. The histology report indicated the large cell lymphoma secondarily.

FURTHER RESPONSE TO SI1:

Responding Party objects to this request on the ground that it includes impermissible subparts. Responding Party also objects that the number of interrogatories, with the impermissible subparts and together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a). Responding Party further objects to the extent the request seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence.

Subject to and without waiving the foregoing objections, Responding Party

responds as follows:

(a) June 25, 2024 at 12:35 p.m.;

(b) At Responding Party's residence, as he was not scheduled to work on June 25, 2024;

(c) Responding Party called Propounding Party to inform Propounding Party of the histology report results. Responding Party advised starting treatment with prednisolone or dexamethasone, B-12, and chlorambucil in one week after Chloe healed completely from surgery.

Responding Party advised a recheck in two months after starting chlorambucil;

(d) Responding Party focused on the small cell lymphoma diagnosis, which was indicated with the intestinal mass and node on the histology report. The histology report indicated the large cell lymphoma secondarily.

AMENDED FURTHER RESPONSE TO SI1:

Responding Party objects to this request on the ground that it includes impermissible subparts. Responding Party also objects that the number of interrogatories, with the impermissible subparts and together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a). Responding Party further objects to the extent the request seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence.

Subject to and without waiving the foregoing objections, Responding Party responds as follows:

(a) June 25, 2024 at 12:35 p.m.;

(b) At Responding Party's residence, as he was not scheduled to work on June 25, 2024;

(c) Responding Party called Propounding Party to inform Propounding Party of the histology report results. Responding Party advised starting treatment with prednisolone or dexamethasone, B-12, and chlorambucil in one week after Chloe healed completely from surgery. Responding Party advised a recheck in

two months after starting chlorambucil;

(d) Responding Party focused on the small cell lymphoma diagnosis, which was reflected in a disease process affecting the small intestines. There was an additional disease process affecting the intestines that was large cell in nature.

C. SI10:

Explain why CHLOE's surgical discharge instructions stated to give 0.7 ml of Gabapentin every 8-12 hours while the bottle label and hospital records stated to give 1.4 ml every 8-12 hours.

RESPONSE TO SI10:

Responding Party objects that the number of interrogatories, with the impermissible subparts and together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a). Responding Party also objects that this interrogatory calls for expert opinion.

Subject to and without waiving the foregoing objections, Responding Party responds as follows: After a reasonable and good faith inquiry, Responding Party lacks personal knowledge to fully respond to this request. The dosage on the prescription was accurate.

FURTHER RESPONSE TO SI10:

Responding Party objects that the number of interrogatories, with the impermissible subparts and together with other requests propounded by Propounding Party, exceed the number of discovery requests permitted by Code of Civil Procedure section 94(a). Responding Party also objects that this interrogatory calls for expert opinion.

Subject to and without waiving the foregoing objections, Responding Party responds as follows: After a reasonable and good faith inquiry, Responding Party lacks personal knowledge to fully respond to this request. The dosage on the prescription by Dr. Atwater was accurate (1.4 ml by mouth every 8-12 hours as needed). Dr. Atwater was not in the hospital on the day Chloe was discharged and did not review the discharge instructions.

Analysis

I. Timeliness of the Motion to Compel

California Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, respectively govern motions to compel further response to special interrogatories (SIs), requests for document production (RDPs), and requests for admission (RFAs). Each has substantially identical language specifying the time limit a requesting party has before they automatically waive their right to file an MTC:

Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel a further response to the requests for admission.

(Code Civ. Proc., § 2030.300, subs. (c).) Further, this time limit is “mandatory[,] and the court may not entertain a belated motion to compel.” (*Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 683.)

Supplemental verified answers are subject to their own 45 day limiting period. (Cal. Code Civ. Proc §§ 2030.300(c), 2031.310(c), 2033.290(c).)

The statutes for special interrogatories and requests for admission explicitly reference particular discovery requests. (CCP 2030.300(a), 2033.290(a).)

Finally, there is a further two court day grace period for electronically filed motions or requests: “any right or duty to do any act ... shall be extended after service by electronic means by two court days.” (Code Civ. Proc., § 1010.6.)

Motions to compel also require declarations of a good faith attempt to informally resolve a particular discovery issue under Section 2016.040 of the CCP.

In the instant matter, this court finds that discovery requests, their verified responses, and the deadlines by which to file any motions to compel should be analyzed individually. For instance, though a requesting party may provide a set of discovery requests consisting of only two individual requests, there is not a single deadline for a motion to compel that necessarily applies to the entire set. If the verified response to request B comes later in time than that for request A, the 45-day windows begin at different times. That there may be one deadline for both responses because they were provided on the same date would be merely coincidence.

Indeed, the statutes on motions to compel contemplate particular requests. And there certainly does not appear to be any authority for the position that all discovery responses should be treated as a bloc, or collectively, such that any supplemental, verified response for one particular request resets for all responses the deadline by which a party

must file a motion to compel.

What's more, lending the statutes the construction that discovery requests and their responses should, in some fashion, be treated as a unit, would lead to absurd results. If a supplemental, verified response to request B does reset the motion deadline for request A as well, because the requests were served as a unit, then a reset for A would occur each time any verified change to B is made in the future. Thus, even in the case where no changes to A are ever made, the deadline for a motion to compel further responses to request A may be extended indefinitely.

Thus, in the instant matter, there are two different deadlines for any motions to compel: One for the Timely Requests; and one for the Balance of Requests.

Since the responses for the Balance of Requests were verified, the deadline for a motion to compel would be the later of 45 days (plus an additional 5 calendar days to account for mail service) from the date of service, or any agreed-upon deadline. Even assuming it is true that Plaintiff legitimately rescinded her agreement to extend the deadline to 3/12/26, that would leave the even earlier deadline of approximately 2/25/26. The emailed response on 3/26/26, of communication logs involving Dr. Atwater, was unverified, and has no effect on the deadline. Thus, Plaintiff's MTC for the responses to the Balance of Requests was late.

The analysis for the responses to the Timely Requests is different. These responses, provided on 2/26/26, were verified, thus starting a new, 45-day clock, which would have ended on 4/12/26, at the earliest. Plaintiff's April 9, MTC filing is therefore timely with respect to RFA No. 7, and SIs Nos. 1 and 10, the Timely Requests.

II. Analysis of the Timely Discovery Requests

A. Legal Standards

A court should grant a motion to compel further response to requests for admission or interrogatories if the responding party's response to a particular request is evasive, incomplete, or otherwise fails to meet statutory requirements. (Code Civ. Proc. (hereinafter CCP) §§ 2030.300, 2033.290.) A court should not grant motions to compel further response if a response addresses the corresponding request "in [its] entirety." (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 268.)

Parties in a limited civil matter are limited to a total of 35 discovery requests. (Section 94 of the CCP.)

Any RFA must be "relevant" to some aspect of the dispute's "subject matter," which is "a concept more liberal than relevancy to the 'issues.'" (*Cembrook v. Superior Court of San*

Francisco (1961) 56 Cal.2d 423, 429.)

CCP section 2033.010, defining the scope of RFAs, expressly permits requests whose answers require the “application of law to fact.”

A response to an RFA must completely answer the request, though it may do so by admitting, denying, or stating an inability to answer differently for different parts of the response. (CCP §§ 2033.220–230; *American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269 .) A “complete” answer leaves “nothing to address in a motion to compel.” (*Id.* at 269.)

The relevance standard for interrogatories is no different than the relevance standard for RFAs. (*Cembrook, supra*, 56 Cal.2d at 429.)

“[N]o specially prepared interrogatory shall contain subparts.” (Cal. Code Civ. Proc. § 2030.060, subs. (f).)

Responses to special interrogatories must be “as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220.)

A party responding to an interrogatory may answer correctly by stating they do not have sufficient information to answer, but they must first “make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220.)

In some cases, a party may have to, after responding that they do not possess the information sought in a discovery request, indicate the efforts they undertook to get that information. *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782. Yet, the extent of that duty appears to be circumscribed, and only seems to apply when the requested information can be obtained from sources under the control of the responding party. *Id.*

This interpretation, of a circumscribed duty to investigate, is consistent with case law. For instance, in *Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, a wrongful death action, the court found that defendants - doctors who had treated a mother who had died during childbirth - satisfactorily responded to interrogatories after responding that they had no knowledge about particular autopsy procedures that were later conducted on the mother. They were not pathologists and did not participate in the autopsy. The court explained that the doctors had no duty to perform the plaintiff’s job for them in finding and extracting information from the responsible party. (*Id.* at 821.)

Sustained objections excuse nonresponses and overcome motions to compel. (See CCP §§ 2030.300, 2033.290; see also *Cembrook, supra*, 56 Cal.2d at p. 430, holding that sustained objections excuse response only to relevant requests and noting that correcting errors is preferred to denying discovery.) Sustained objections do not mean that the requesting party has misused discovery unless they persist over those sustained

objections. (See CCP § 2023.010.) Meritless (i.e., overruled) objections are, however, misuses of the discovery process subject to discretionary sanctions. (*Ibid.*)

B. Discussion

In the instant matter, neither RFA7 nor SI1 is vague or ambiguous. Though RFA7 may assume a fact in that implies Defendant *did* fail to notice the large cell lymphoma diagnosis in the histopathology report, it is clear that the request is for Defendant to admit both that he failed to notice this diagnosis *and* that he was grossly negligent in doing so. SI1 is quite clear in asking about the circumstances surrounding Defendant's purported reading of a particular section of the report.

Next, while there is no explicit language with respect to special interrogatories, there is an apt analogy with CCP 2033.010, which is quite clear that the scope of a request for admission includes applications and opinions. This court does not see why the same scope should not apply to special interrogatories.

However, SI1 clearly contains subparts, and there is no exception. Thus, this court sustains Defendant's objection to SI1, in that it impermissibly contains subparts.

The issue of relevance is significant to RFA7. In this request, Plaintiff desires that Defendant admit that he was grossly negligent. But gross negligence is not an issue in this matter, especially considering this court sustained a demurrer to that cause of action. Thus, this request is not relevant.

To the extent that this request is simply asking for an admission that Defendant failed to notice the diagnosis, he admits so in his further response. To the extent the request is for an admission that the Defendant was negligent, he denies this request. This, to the court, is quite clear: Plaintiff asks for an admission that he was negligent; Defendant denies that he was negligent.

Thus, the response to RFA7 is complete and warrants no further information.

The issue with respect to SI10 seems to hinge on the sufficiency of Defendant's inquiry for responsive information. His further response – that he was not present at the hospital on the day of discharge and did not review the discharge instructions – clearly suffices to establish that he doesn't possess the personal knowledge of why the prescription levels between the label on the bottle and the records that he authored differ from those on the bottle. Another employee – or employees - for the medical center would then apparently be responsible for the prescription level on the bottle. They would likely have the information sought by Plaintiff.

Yet these other sources of information – employees of the medical center – were not

under the control of the Defendant; they were not under his employ or supervision, for example. This is not a case where, while Defendant does not have the actual knowledge of the information responsive to a request – such as a particular record of data – that information may lie in a volume of records over which the responding party does have possession and control. In that case, a simple, I don't know, from the responding party would not suffice. They would have to follow up with an indication that they looked through the volume of records they in fact possess and still didn't find it. What's more, this information – an explanation from the people responsible for the prescription label on the bottle – appears to be readily available through a discovery request by the Plaintiff.

Thus, this court finds that, similar to the defendants in *Holguin*, Defendant did not have any further duty to inquire with the various persons in the hospital who may have been involved in the creation of the discharge instructions. It is not his duty to prepare the case of his opponent.

In sum, this court finds that Defendant does not have to provide any further responses to the discovery requests of Plaintiff.

Plaintiff's Motion is denied.

III. Sanctions

The purpose of sanctions under the California Discovery Act is to deter the misuse of the discovery process by encouraging parties to work out discovery with minimal intervention of the court. (See, generally, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390.)

To begin with, the court has the power to award monetary sanctions to the prevailing party in a motion to compel. This sanction is mandatory unless the court finds the unsuccessful party acted with substantial justification, or the court finds that a sanction is otherwise unjust. (CCP 2031.310(h).)

What's more, parties must make a reasonable and good faith attempt to resolve each issue presented by a motion to compel. (CCP 2016.040.) Sanctions for a party's failure to meet and confer as required are mandatory and shall include the reasonable expenses, including attorney's fees, that the opposition incurs for the failure of the offending party. (CCP 2023.020.) It does not appear that the court can consider whether the imposition of such a sanction would be unjust.

In the instant matter, while Plaintiff may not have been open to meeting and conferring after Defendant's responses on 2/26/26, she clearly did so on 2/5/26. The statute does

not require that parties meet and confer after each response, only that they meet and confer in an attempt to resolve each issue. Ms. Schindler did that. To adopt the former interpretation would require that Plaintiff meet with Defendant after each newly provided response on a particular issue, whether or not the new response is substantively different than previous responses. This could lead to a requirement of meeting ad infinitum, forever precluding Plaintiff from filing a motion to compel.

Neither party requested a sanction under the theory of misusing the discovery process, so the court next turns to prevailing party sanctions. Since they are mandatory, it appears it would be the burden of the losing party, in this case, Plaintiff, to demonstrate why, she either acted with substantial justification, or the imposition of sanctions would be unjust.

The court, however, finds no substantial justification for Plaintiff's conduct, nor why the imposition of sanctions would be unjust.

Plaintiff was clearly beyond the deadline for the vast majority of the requests for which she sought court intervention in her Motion. The statutory requirement that imposes a deadline on the filing of a motion to compel is a bright line: it's either 45 days from the date the verified responses are served, or the date on which the parties have agreed, whichever is later. The deadline is a hard one, and if it comes and goes without a motion, the propounding party has waived that right. There is no other interpretation. Plaintiff had waived her right to file a motion to compel further responses to the Balance of Requests. She filed this Motion nonetheless.

Moreover, this court finds that the sheer volume of Plaintiff's discovery requests is reason to find that she did not act with substantial justification. Plaintiff knew she had exceeded the limit, and Defendant maintained his objections to the number of requests with his supplemental responses. While Plaintiff cites Sections 2030.040 and 2033.040 of the CCP as authority that grants a propounding party leave to exceed the cap with the requisite declaration, those sections do not apply in limited civil matters. Sections 94 and 95 of the CCP make this quite clear: Any requests beyond the statutory limit of 35 require noticed motion. That did not happen here.

Reasonable Costs and Attorney's Fees

Counsel for Defendant, Ms. Burdine, filed a Declaration on 6/23/26, which details her expenses in responding to this Motion. She indicates she spent 18 hours in the preparation of the opposition to the Motion, and anticipates a further hour to attend the hearing on the Motion. Her hourly rate is \$285. She requests a total award of \$5,415.

The court finds that the amount of time that Ms. Burdine spent in preparing the opposition is reasonable, especially given the length of Plaintiff's Motion, as well as the number of discovery requests at issue. The court also finds that Ms. Burdine's hourly rate is at or below the average rate of the attorneys who commonly appear in limited civil

matters in this county.

The amount for attorney's fees thus amounts to \$5,130.

This leaves a difference of \$285 that are presumably attributable to other costs. However, these specific costs are not itemized in any detail, so the court will not award them.

Disposition

Plaintiff's Motion is denied.

Sanctions in the amount of \$5,130, will be awarded for Defendant, and against Plaintiff.

Sanctions are to be paid by 2/11/27, 5pm.

Defendant to file Order and to serve copy of filed Order on Defendant.

[11](#) This court, on 4/14/12, sustained a demurrer to the second cause of action of the Second Amended Complaint ("SAC") without leave to amend. This court also struck the request for exemplary damages under Civ 3340, without leave to amend, as well as requests for punitive damages and the special or peculiar value of Chloe; for these last two, however, the court granted leave to amend.

7. 9:00 AM CASE NUMBER: L25-07360
CASE NAME: CAPITAL ONE N.A. VS. FLORENCE PACIS
MOTION FOR ORDER THAT MATTERS IN REQ FOR ADMISSION OF TRUTH OF FACTS BE DEEMED
ADMITTED FILED BY PLTF. ON 04/10/2026
FILED BY: CAPITAL ONE N.A.
***TENTATIVE RULING**

This matter was vacated.

8. 9:00 AM CASE NUMBER: L25-07406
CASE NAME: SYNCHRONY BANK VS. JULIO RODRIGUEZ
MOTION TO SET ASIDE DEFAULT JUDGMENT FILED 5/4/26
FILED BY: RODRIGUEZ, JULIO
***TENTATIVE RULING**

Defendant has filed a Motion to set aside a default judgment, along with a Declaration.